

ASBE VS. ROBBINS

CASE NUMBER: 26APSC-0005

Tentative Ruling on Motion to Set Aside Judgment: Defendant John Robbins moves to set aside the judgment entered against him following Defendant's nonappearance at a trial de novo on March 30, 2026. Despite being properly noticed of today's hearing, Plaintiff Kelly Asbe did not file an Opposition.

Defendant moves under CCP § 437(b) to have the judgment set aside because the Notice of Appeal contained an incorrect address for Defendant, which resulted in the Notice of Hearing being mailed to the wrong address. The Notice of Hearing was returned to the court as undeliverable and Defendant and his counsel have declared that they had no notice of the hearing date until after judgment was entered. CCP § 473(b) reads, in part, "The court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." The typographical error in the Notice of Appeal, filed by Defendant, was a mistake that resulted in a judgment being taken against Defendant. Defendant had no notice of the hearing date for the trial de novo on March 30, 2026. Once Defendant learned that a judgment had been entered against him, he acted diligently in seeking to have the judgment set aside.

The motion is **GRANTED**. The judgment entered on March 30, 2026, is set aside pursuant to CCP § 473(b). The parties are ordered to appear to set a new hearing date for the trial de novo. If both parties do not appear, the Court will select a hearing date. Defendant did not provide a proposed Order as required by Local Rule of Court 5.17(D). Defendant is to prepare the Order.

BANK OF AMERICA, N.A. VS. METZGER

CASE NUMBER: 25CVG-00681

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement: Plaintiff Bank of America, N.A. seeks to vacate the dismissal entered on July 22, 2025, and enforce the Stipulation Agreement filed on July 7, 2025. Despite being properly noticed, Defendant Lauren Adriana Marie Metzger did not file an Opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed in this matter on July 7, 2025. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation Agreement filed with the Court on July 7, 2025, was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,334.98 which consists of \$6,791.37 in principal and \$543.61 in costs. The agreement calls for a payment of \$488.98 on or before April 29, 2025, followed by minimum monthly payments of \$489 starting May 29, 2025, until fully paid. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Anthony DiPiero establishes that Defendant has paid a total of \$4,889.98 and has not made a payment since January 25, 2026. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests entry of judgment in the amount of \$2,505.00 which includes remaining principal in the amount of \$1,901.39 and court costs in the amount of \$603.61. While the Memorandum of Costs filed on May 7, 2026 includes \$603.61 in costs, the parties stipulated to a specific amount of \$543.61 for costs, not costs pursuant to a Memorandum of Costs. Therefore, the judgment will be \$2,445.00 which is comprised of the remaining principal and costs in the amount of \$543.61.